26VECV03039 26VECV03039

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-31

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DANIELS V UNION HOME LOAN

Tentative

order: Motion for Preliminary Injunction is DENIED.

The court

takes judicial notice of the documents requested but not hearsay in them. The court takes notice that Ari Daniels made certain statements.

Plaintiffs

seek a Preliminary Injunction halting the foreclosure sale of real property that plaintiff Ari Daniels now states under oath is his primary residence despite having denied that under oath in his loan application.

In order to

determine whether the preliminary injunction should issue, plaintiffs must show "irreparable injury" if the injunction is not issued. The court also will consider the likelihood of the moving party's success on the merits, and the extent to which the balance of hardships favors the respective parties.

Plaintiffs

have not shown irreparable injury. Mr. Daniels does not state that he has no other place to live, that he owns no other homes (whether here in California which he now states in his home or in Florida which he also stated was his home). He does not say that he would not be able to provide a home for himself and his daughter. Irreparable harm has not been shown. Moreover, he has not shown that he is current on the first in place mortgage.

This action derives from loans obtained by plaintiffs to which the Corbin property located was pledged as collateral. Reviewing the verified complaint, plaintiffs do not deny that money was borrowed from UHL to the tune of the unpaid principal balance of $340,000. This is fundamentally the basis of this entire lawsuit. But for the loan, there would be no lawsuit.

Therefore, in reviewing the case, the court finds that plaintiffs have not shown the likelihood of success of not having to repay the loan. True, there are other issues relating to fraud, etc., but this preliminary injunction seeks to bar the sale of property which was secured by a loan, which plaintiff does not deny receiving, and has not paid back. For purposes of this hearing, it is irrelevant what the loan was for. It is irrelevant as to the terms. It is only relevant that plaintiffs received the money and loan was secured by the property. There are no grounds stated in the complaint which would support that plaintiffs do not have to repay the principal amount.

Even if there was fraud, plaintiffs have failed to establish that there is a likelihood that they will not have to repay a loan obtained by them, so the court denies the preliminary injunction. The remainder of the claims are merely monetary damages claims which do not involve the property.